

## IN THE HIGH COURT AT CALCUTTA

Orbit Pharma Labs Ltd. vs Power Grid Corporation of India Ltd. ... on 11 October, 2022

AIR 2024 DEL 241, (2024) 6 DLT 295

Bench: Anoop Kumar Mendiratta, J.

### JUDGMENT

Anoop Kumar Mendiratta, J.

1. The petitioner, Orbit Pharma Labs Ltd., has filed this petition under Section 34 of the Arbitration and Conciliation Act, 1996 challenging the Arbitral Award dated 07-01-2023 in disputes arising out of the works contract dated 27-08-2016 awarded by the respondent, Power Grid Corporation of India Ltd..
2. The petitioner raised claims of price escalation and idle machinery charges under Sections 73 and 74 of the Indian Contract Act, 1872, alleging that the respondent committed systemic delays in granting site access and approvals.
3. Mr. Merchant, learned Senior Counsel for the petitioner, contended that the award suffers from patent illegality under Section 34(2A) of the Arbitration and Conciliation Act, 1996, as the Tribunal ignored contemporaneous correspondence admitting delay attributable to the respondent.
4. Reliance was placed on (2021) 16 SCC 351 in the case of PSU Engineering Corporation v. State of Bihar, and on (2015) 3 SCC 49 in the case of Associate Builders v. Delhi Development Authority, to contend that an award ignoring vital documentary evidence is perverse and liable to be set aside.
5. Mr. Rohatgi, learned Senior Counsel for the respondent, defended the award, urging that under Section 34 of the Arbitration and Conciliation Act, 1996 this Court does not sit in appeal over the Tribunal's factual findings, and that the deductions towards liquidated damages of Rs. 24,000,000/- were justified.

6. On scrutiny, the Tribunal failed to consider Ex. P-19 and Ex. P-23 which conclusively established handover defaults attributable to the respondent. However, the findings on delay compensation suffer no infirmity since no loss was proved under Section 74 of the Indian Contract Act, 1872.

7. The petition under Section 34 is partly allowed; the award to the extent of liquidated damages of Rs. 24,000,000/- is set aside, and in rest it is affirmed.

Anoop Kumar Mendiratta.